

for their return. The King (out of the great care of their safety) referred their petition to the Lord Keeper Coventry, and that he, with the advice of the Judges, should consider by what way it might be done: and the eighteenth day of June we attended the Lord Keeper at Durham-House; and there upon conference and consideration of a former resolution which was at Reading in Mich. term last, before the said Lord Keeper (where were present all the Judges, besides my self). That these abusive habeas corpus were not lawful, and that the warden and marshal were then called and warned, that they should not suffer their prisoners to go into the country, as they had used to do, by colour of such writs: this which follows was subscribed.

We are of opinion, that the writ of habeas corpus is both ancient and legal; but as the writ doth not, so no rule can authorize the keeper of the prison to give liberty to his prisoner, by colour of such writ, but the same is an abuse against law, and an escape in the keeper, if he let the prisoner go by such writ.

We find, that neither in the twenty fourth year of Eliz. when the term was adjourned to Hertford. Nor in the 34th of Eliz. in which year it was adjourned to Hertford. Nor in the 35th of Eliz. in which year it was adjourned to St. Albans. Nor in 1 Jac. in which year the term was adjourned to Winchester. Nor in the first of King Charles, in which year it was adjourned to Reading. (In all which years there were great and dangerous infections of the plague) there was no such course to set prisoners out of prison by habeas corpus; but we find it a novelty begun of late years.

But we think, that if the danger of infection shall grow so great, as it shall be found necessary to provide for the safety of the prisoners (who may at all times provide for themselves by paying their debts, and yielding obedience to Justice) then a course may be taken that some certain house may be assigned for the warden of the Fleet, in some good Town, remote from the infection, and the like for the marshal of the Kings Bench, in some other town, where they may remove such prisoners as have been petitioners to His Majesty, and there keep them as prisoners, sub arcta & salva custodia, as they should be kept in their proper prisons, and not to be as house-keepers in their own houses; and by this means they will have the like to avoid the infection, as other subjects have, and not make the infection a cause to abuse their creditors, or delude the course of justice.

JOHN BRAMSTON	1.	HUMPH. DAVENPORT	6.
RICHARD HUTTON	2.	WILLIAM JONES	7.
GEORGE CROOKE	3.	THOMAS TREVOR	8.
GEORGE VERNON	4.	ROBERT BARKLEY	9.
FRANCIS CRAWLEY	5.	RICHARD WESTON	10.

To Sir JOHN BRAMSTON Knight, Lord Chief Justice of England.

My very good Lord,—I have acquainted His Majesty with your resolution, and your brethren, about writs of habeas corpus, His Majesty doth exceedingly approve the same, and hath commanded me to let you know, that His Majesty would not recede from that which you have certified, and prays you and the rest of my Lords the Judges, to observe it constantly, according to that resolution under your hands:—Your Lordship's assured,

THO. COVENTRY, C.S.

Hampton Court, 19 June, 1636.

[131] MICH. 14 CAR.

JUSTICE HUTTONS CASE *versus* HARISON.

Words against Justice Hutton. 1 Croke, 503.

Memorand. That 28 Aprilis, 14 Car. Justice Hutton argued in the Exchequer Chamber in the case adjourned thither, upon a scire facias by the King against Hampden for ship money, in which he was of opinion, that as well for the matter as for the form, upon divers exceptions to the pleading. Judgment shall be given against the King.

Afterwards, viz. 4 Maii, Thomas Harison Batchelor of Divinity, and Parson of Creak in Northamp. came to the Court of Common Bench (Justice Hutton, and